code of conduct. Similarly the laws framed by state also aim to achieve the same goal.

"The best state is that which is nearest in virtue to the individual. If any part of the body politic -suffers, the whole body suffers". ***-Plato***

A bad state will have bad citizens and a good state will have good citizens. So it is the sole function of the state to keep a good standard of morality.

Quotable Quote

Morality is concerned with the moral duties whereas the laws of the state are concerned with the legal duties.

Distinction between Law and Morality:

- Laws are enforced by the state, if not obeyed to the commands of law, he is likely to be punished by the state.
- The severe punishment one can be awarded to a person for not observing the scruples of morality is the social boycott.
- Morality is concerned with both internal and external affairs of man whereas law is concerned only with the external affairs of man. Hence, law punishes only those persons who violate laws by their external actions.

Public Opinion: Opinion held by people for the common welfare

What is Moral law?

A law framed with a purpose of eliminating evils such as drinking of wine, gambling, theft, dacoity and murder are moral laws. The laws which are based on morality remain permanent

4.1.6 How Law and Public opinion are related to each other?

The power of democracy lies in the participation of people in the democratic exercise of electing their representatives. People are not directly involved in the framing of laws, yet they could elect their representatives to legislature. The elected body are just expected to represent the will of the public.

The Modern state appeals to morality, to religion, and to natural law as the ideological foundation of its existence. At the same time it is prepared to infringe any or all of these in the interest of self-preservation.



J.M. Coetzee

In democracy laws are framed only based on the support of public opinion. People carry out peaceful demonstrations to express their opinion or resentment. Common welfare of the people and social progress are the primary considerations of public opinion.

Quotable Quote

Law and order exist for the purpose of establishing justice and when they fail in this purpose they become the dangerously structured dams that block the flow of social progress.



Martin Luther King, Jr

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